

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Maryann Wong	Team: Team # 2	CCRB Case #: 200912305	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 08/11/2009 6:20 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 2/11/2011	Precinct: 77		
Date/Time CV Reported Tue, 08/11/2009 7:05 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Tue, 08/11/2009 7:05 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. SGT Raymond Tomins	05336	902480	WARRSEC
2. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Michael Ragona	05697	916485	WARRSEC
2. DT3 Thomas Toscano	02841	933420	WARRSEC

Officer(s)	Allegation	Investigator Recommendation
A . SGT Raymond Tomins	Abuse: Sergeant Raymond Tomins supervised the entry of § 87(2)(b) in Brooklyn.	A . Exonerated
B . An officer	Abuse: An officer damaged § 87(2)(b)'s property.	B . Unfounded

Synopsis

On August 11, 2009, § 87(2)(b) filed a complaint with the CCRB via the call-processing system (encl. 3A-B).

On January 16, 2009, at 6:20am, Sergeant Raymond Tomins supervised the entry of § 87(2)(b)'s home at § 87(2)(b) in Brooklyn (Allegation A). The officers had an arrest warrant for § 87(2)(b) who had given his parole officer (name unknown) § 87(2)(b)'s address as his primary place of residence, even though he no longer lived there. When the officers entered, they allegedly damaged § 87(2)(b)'s door (Allegation B). § 87(2)(b) was not in § 87(2)(b)'s home. § 87(2)(b) was not arrested and was not issued a summons.

§ 87(2)(g)

Therefore, it is recommended that Allegation A be closed as exonerated. § 87(2)(g)
Therefore, it is recommended that Allegation B be closed as unfounded.

Summary of Complaint

§ 87(2)(b)

On August 11, 2009, § 87(2)(b) filed a complaint with the CCRB. On August 12, 2009, § 87(2)(b) was interviewed at the CCRB (encl. 4A-D). § 87(2)(g)

§ 87(2)(b)

On August 11, 2009, at 6:20am, § 87(2)(b) was sleeping at his uncle's, § 87(2)(b), apartment at § 87(2)(b) in Brooklyn. § 87(2)(b) has been staying with his uncle for more than two years. § 87(2)(b) was arrested about a week prior to the incident, and is currently incarcerated. § 87(2)(b) was sleeping in the apartment alone.

§ 87(2)(b) heard banging on the front door. A male voice said, "NYPD, open the door." § 87(2)(b) heard the doorknob fall. § 87(2)(b) got up, went to the front door and opened it.¹ One of the officers was Detective Ragona, who was identified by § 87(2)(b) because he handed him his business card. § 87(2)(b) described Detective Ragona as a white male, 5'8" - 5'10" tall, medium build and in his mid to late thirties with dirty blonde hair.

Detective Ragona asked if § 87(2)(b) had any weapons in the apartment and § 87(2)(b) responded that he did not. Although § 87(2)(b) did not know why he was asked about weapons, he told the detectives that they could come inside and that they were free to search the apartment for weapons. The detectives looked in every room in the house, including the attic; they did not find anything.

Detective Ragona then began to ask § 87(2)(b) questions about a man named § 87(2)(b). § 87(2)(b) is a friend of § 87(2)(b). § 87(2)(b) is not friends with § 87(2)(b) but knows of him because he stayed in § 87(2)(b) apartment in November of 2008 after getting released from a drug program. § 87(2)(b) gave his parole officer § 87(2)(b) address. After about three weeks, § 87(2)(b) left the apartment. § 87(2)(b) believed that § 87(2)(b) left because his parole officer came to the apartment looking for him. § 87(2)(b) did not know why. Since § 87(2)(b) left, § 87(2)(b) has not seen or spoken to him.

¹ Later during his interview, § 87(2)(b) testified that the officers had already opened the door when he got there and that Detective Ragona picked up his doorknob from the ground and handed it to him. Then, three minutes after the previous statement, § 87(2)(b) stated that he told the detectives to "come in" as the waited outside the door. Finally, at the end of the interview, he confirmed that the detectives had entered his apartment before he opened the door.

Also, since § 87(2)(b) has left, plainclothes detectives came to the apartment twice (in January and in April) and asked about § 87(2)(b). § 87(2)(b) complied both times and told the detectives that § 87(2)(b) did not live there anymore and that he did not have contact with him. The detectives told him that they would have to keep coming back to the apartment until they found § 87(2)(b). These detectives were different from the detectives that came to the apartment on August 11, 2009.

§ 87(2)(b) was cooperative and told Detective Ragona everything he knew; specifically that he had not seen § 87(2)(b) since November of 2008 and did not know where he was. § 87(2)(b) was not arrested and did not receive a summons. In addition to the doorknob, the detectives broke § 87(2)(b)'s lock. He now only uses the deadbolt lock on the door.

Results of Investigation

Officer Interviews

Detective Ragona

On October 14, 2009, Detective Ragona was interviewed at the CCRB (encl. 6A-D). Detective Ragona is a white male, § 87(2)(b) with black hair and brown eyes.

On August 11, 2009, Detective Ragona worked from 4:27am to 1:00pm, was assigned to warrants, worked with Detective Thomas Tuscano and Sergeant Raymond Tomins, dressed in plainclothes and was assigned to an unmarked van. Detective Ragona had the following entry in his memo book regarding the incident: At 6:15am, present at § 87(2)(b)

On August 11, 2009, at 6:20am, Detective Ragona's team had a felony warrant for § 87(2)(b) at § 87(2)(b). § 87(2)(b) had been arrested at this address the previous year on a different warrant. When the detectives got there, they knocked on the door. They did not do anything besides knock on the door. The door was already damaged as evidenced by the door being slightly kicked in and the doorknob looking broken. The doorknob never fell off. The detectives did not try to enter the residence. § 87(2)(b) opened the door and the detectives explained why they were there. § 87(2)(b) said that the detectives could enter and take a look around. § 87(2)(b) said that he had not seen § 87(2)(b) since November of 2008. § 87(2)(b) made a couple phone calls to assist the detectives in locating § 87(2)(b). § 87(2)(b) was unable to find anyone who knew where § 87(2)(b) was.

Regarding the door, § 87(2)(b) explained to the detectives that, a couple days earlier, detectives from out of state had been at the residence with a warrant and had broken the lock. These detectives had arrested § 87(2)(b) who was identified via investigation (Detective Ragona did not know his name, but remembered that he was § 87(2)(b)'s uncle). Detective Ragona gave § 87(2)(b) his card and all the detectives left the apartment.

Sergeant Raymond Tomins

On October 26, 2009, Sergeant Raymond Tomins was interviewed at the CCRB (encl. 5A-D). Sergeant Tomins is a white male, § 87(2)(b) with brown hair and hazel eyes.

On August 11, 2009, Sergeant Tomins worked from 4:05am to 3:00pm, was assigned to warrants, worked with Detective Ragona and Detective Tuscano, dressed in plainclothes and was assigned to an unmarked van. Sergeant Tomins had the following memo book entry regarding the incident: At 5:55am, § 87(2)(b)

On August 11, 2009, at 5:55am, Sergeant Tomins and his team went to § 87(2)(b) because they had a warrant for § 87(2)(b) arrest. Sergeant Tomins explained that, with an arrest warrant, officers are allowed to remove the door if needed and search any area in the apartment that is big enough to hold a person. When the detectives arrived at § 87(2)(b) the front door was damaged. The inside piece of the doorknob had fallen off and the outside of the door looked damaged – it appeared as though the door had been removed before. The officers were outside of the door for five or ten minutes before § 87(2)(b) answered the door. The officers knocked on the door with their hands. When § 87(2)(b) opened the door,

something happened with the doorknob. Sergeant Tomins could not remember what happened with the doorknob, and whether it fell off or not.

§ 87(2)(b) told the detectives that they could come inside. The detectives interviewed § 87(2)(b) who was cooperative. § 87(2)(b) stated that his uncle, identified via investigation as § 87(2)(b) was in jail. § 87(2)(b) told the detectives that officers had been inside his apartment a week or two earlier, and they had removed the door, looking for § 87(2)(b). After asking § 87(2)(b) questions, the detectives left.

Officers not interviewed

§ 87(2)(g)

Police Documents

Brooklyn North Warrant Squad's roll call (encl. 7A-E)

The Brooklyn North warrant squad's roll call indicates that Sergeant Tomins, Detective Ragona and Detective Tuscano and Detective Mucciaccio worked together to execute a warrant on August 11, 2009.

Arrest Warrant (encl. 9E)

An active warrant for § 87(2)(b) came back negative.

Criminal Conviction History

BADS and OCA do not have any record of § 87(2)(b) or § 87(2)(b) on file.

CCRB History

Sergeant Raymond Tomins (encl. 2A)

Sergeant Tomins, a member of the NYPD for 17 years, does not have any substantiated allegations in his history.

§ 87(2)(b) (encl. 2B)

§ 87(2)(b) has no current or past complaints with the CCRB via phone.

Conclusions and Recommendations

Subject Officer Identification

Sergeant Tomins admitted to supervising the entry of § 87(2)(b) § 87(2)(g)

§ 87(2)(b) did not see which officer allegedly caused damage to his door. § 87(2)(g)

Undisputed facts

Sergeant Tomins and his team entered § 87(2)(b) they had a warrant for § 87(2)(b). In November of 2008, § 87(2)(b) was living at § 87(2)(b).

Disputed facts

§ 87(2)(g)

Allegations not pled

§ 87(2)(g)

Assessment of the evidence

§ 87(2)(b) stated that the officers entered his apartment before he opened the door for them. Sergeant Tomins and Detective Ragona testified that § 87(2)(b) gave them permission to enter into his apartment.

§ 87(2)(g)

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In

People v. Whitehurst, the court of appeals stated that consent to a search is voluntary, “when it is a true act of the will, an unequivocal product of an essentially free and unconstrained choice.”

§ 87(2)(b) testified that the detectives caused damage to his door; specifically, they caused his doorknob to fall off and broke one of his locks. All parties corroborate on § 87(2)(b) arrest. § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Allegation A: Sergeant Raymond Tomins authorized the entry and search of § 87(2)(b) in Brooklyn. § 87(2)(g)

§ 87(2)(g) *It is therefore recommended that Allegation A be closed as exonerated.*

Allegation B: An officer damaged § 87(2)(b) s property.

§ 87(2)(g) *Therefore, it is recommended that Allegation B be closed as unfounded.*

Investigator: Maryann Wong

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: